

26STCV00816 26STCV00816

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-20

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Case Number: 26STCV00816 Hearing Date: August 20, 2026 Dept: 732

Denia Aguilera, et al. v. 630

Sepulveda, LLC, et al.

Thursday, August 20, 2026

CASE NUMBER: 26STCV00816

UNOPPOSED

Plaintiff Denia Aguilera's Petition to Approve Minor's Compromise for
Claimant Autumn Chrtntena Buchanan _____

Facts: This is a motor vehicle negligence action. The First Amended Complaint ("FAC") alleges as follows. Plaintiffs Denia Aguilera and Autumn Chrtntena Buchanan ("Plaintiffs") leased residential property from Defendants 630 Sepulveda, LLC and Weststar Property Management Inc. ("Defendants"). (FAC ¶¶ 15–19.) Defendants have permitted various defective conditions to persist on the property rendering it uninhabitable despite complaints from Plaintiffs. (FAC ¶¶ 21–22.)

Procedural History: Plaintiffs filed the original Complaint on January 9, 2026, and filed the FAC on June 24, 2026, alleging ten causes of action:

1.

Breach of Statutory Warranty of Habitability

2.

Breach of Tortious Warranty of Habitability

3.

Breach of Covenant of Quiet Enjoyment

4.

Breach of Contract

5.

Negligence

6.

Negligent Hiring and Supervision

7.

Private Nuisance

8.

Intentional Infliction of Emotional Distress

9.

LAMC § 45.33

10. Unfair

Competition

Plaintiffs filed the present

petition to approve minor's compromise on July 23, 2026.

Analysis

I.

PETITION

FOR MINOR'S COMPROMISE

Minors or people without legal

capacity to make decisions must appear in court by a guardian or conservator of the estate, or guardian ad

item. (Code Civ. Proc. § 372, subd. (a)(1).) Such person appearing in court on behalf of the minor or person without capacity has the power to compromise the claims of the represented person, "with the approval of the court." (Ibid.) The requirement of court approval exists "to protect the best interests of the minor." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.)

"A petition for court approval of a compromise of, or a covenant not to sue or enforce judgment on, a minor's disputed claim; a compromise or settlement of a pending action or proceeding to which a minor or person with a disability is a party; or the disposition of the proceeds of a judgment for a minor or person with a disability under Probate Code sections 3500 and 3600-3613 or Code of Civil Procedure section 372 must be verified by the petitioner and must contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition." (CRC Rule 7.950.)

If an attorney assisted in the preparation of the petition, the petition must disclose: "(1) The name, state bar number, law firm, if any, and business address of the attorney; (2) Whether the attorney became involved with the petition, directly or indirectly, at the instance of any party against whom the claim is asserted or of any party's insurance carrier; (3) Whether the attorney represents or is employed by any other party or any insurance carrier involved in the matter; (4) Whether the attorney has received any attorney's fees or other compensation for services provided in connection with the claim giving rise to the petition or with the preparation of the petition, and, if so, the amounts and the identity of the person who paid the fees or other compensation; (5) If the attorney has not received any attorney's fees or other compensation for services provided in connection with the claim giving rise to the petition or with the preparation of the petition, whether the attorney expects to receive any fees or other compensation for these services, and, if so, the amounts and the identity of the person who is expected to pay the fees or other compensation; and (6) The terms of any agreement between the petitioner and the attorney." (CRC Rule 7.951.)

The petitioner and claimant must attend the hearing on the petition unless the court for good cause orders otherwise. (CRC Rule 7.952, subd. (a).)

In all cases under Code of Civil Procedure section 372 or Probate Code sections 3600-3601, unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability.

The court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events.

(CRC Rule 7.955, subd. (a)(1)–(2).)

Plaintiff Denia Aguilera

("Plaintiff") seeks approval of a settlement for minor Claimant Autumn Chrtntena Buchanan ("Claimant") as follows. The total settlement to be paid from Defendants 630 Sepulveda, LLC and Weststar Property Management Inc. ("Defendants") is \$100,000.00, to be apportioned \$97,500.00 for Plaintiff, and \$2,500.00 for Claimant. (Petition at p. 3.) The basis for this apportionment is that the habitability conditions at issue caused Plaintiff to lose wages, rent, and out of pocket expenses, which were not incurred by the minor claimant. (Petition Att. 11b(6).)

From the \$2,500.00 apportioned to Claimant, 25% — \$625 — is apportioned to attorney fees. (Petition at p. 5.) This leaves a net settlement amount of \$1,875.00 for Claimant, to be delivered to Plaintiff without bond pursuant to Probate Code §§ 3401 and 3402. (Petition at p. 8.)

The motion is accompanied by a declaration of Plaintiffs' counsel, who attests to the work performed on this case, their qualifications, and the factors described in CRC Rule 7.955, subd. (b). (Yenokian Decl. ¶¶ 1–12.) Counsel presents the retainer agreement with a 45% contingency fee, which he has discounted to 25% for Claimant. (Petition Att. 17a.) Counsel states that he spent 60 to 65 hours of attorney work on the present action since he commenced the representation in July 2025.

(Yenokian Decl. ¶¶ 2, 6.)

The settlement apportionment and fees are reasonable in light of the materials presented. However, insufficient materials are presented to authorize disposition of the settlement proceeds to Plaintiff under Probate Code § 3401 and 3402. Probate Code § 3401 states:

Where a minor does not have a guardian of the estate, money or other property belonging to the minor may be paid or delivered to a parent of the minor entitled to the custody of the minor to be held in trust for the minor until the minor reaches majority if the requirements of subdivision (c) are satisfied.

...

(c) This section applies only if both of the following requirements are satisfied:

(1) The total estate of the minor, including the money and other property to be paid or delivered to the parent, does not exceed five thousand dollars (\$5,000) in value.

(2) The parent to whom the money or other property is to be paid or delivered gives the person making the payment or delivery written assurance, verified by the oath of such parent, that the total estate of the minor, including the money or other property to be paid or delivered to the parent, does not exceed five thousand dollars (\$5,000) in value.

(Code Civ. Proc. § 3401, subd. (a), (c).)

The present petition contains no assurance that the estate of the minor is less than \$5,000.00.

Hearing on the present petition is therefore CONTINUED to permit Plaintiff to file the requisite verified assurance under Probate Code § 3401.

Superior Court of California

County of Los Angeles

Department 732

DENIA

AGUILERA, et al.

Plaintiffs

v.

630 SEPULVEDA, LLC, et al.,

Defendants.

Case No.:

26STCV00816

Hearing Date: August 20, 2026

[TENTATIVE] RULING RE:

Plaintiff

Denia Aguilera's Petition to Approve Minor's Compromise for Claimant Autumn
Chrntena Buchanan

Plaintiff Denia Aguilera's

Petition to Approve Minor's Compromise for Claimant Autumn Chrntena
Buchanan is CONTINUED to permit

Plaintiff to file the requisite verified assurance under Probate Code § 3401.

Plaintiffs to give
notice.

Dated: August 20, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court